

25STCV31476 25STCV31476

County: los-angeles

Division: Civil Law and Motion

Department: 407

Hearing date: 2026-07-21

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Case Number: 25STCV31476 Hearing Date: July 21, 2026 Dept: 407

Tentative Ruling

Judge Brock T. Hammond, Department 407

HEARING DATE: July

21, 2026 TRIAL DATE: Not set

CASE: Tiffany Phan, et al. v. Avalonbay Communities, Inc., et al.

CASE NO.: 25STCV31476

MOTION

TO BE RELIEVED AS COUNSEL

I. INTRODUCTION

On June 25, 2026, Kevin P. Culpepper, counsel for Plaintiff, Margit Nomeland Willoch, filed this Motion to be Relieved As Counsel.

The motion is unopposed.

II. LEGAL STANDARD

California Rules of Court, rule 3.1362 (Motion to Be Relieved as Counsel) requires (1) notice of motion and motion to be directed to the client (made on the Notice of Motion and Motion to be Relieved as Counsel—Civil form (MC-051)); (2) a declaration stating in general terms and without compromising the confidentiality of the attorney-client relationship

why a motion under Code of Civil Procedure section 284(2) is brought instead of filing a consent under Code of Civil Procedure section 284(1) (made on the Declaration in Support of Attorney's Motion to Be Relieved as Counsel—Civil form (MC-052)); (3) service of the notice of motion and motion and declaration on all other parties who have appeared in the case; and (4) the proposed order relieving counsel (prepared on the Order Granting Attorney's Motion to Be Relieved as Counsel—Civil form (MC-053)).

The court has discretion to allow an attorney to withdraw, and such a motion should be granted provided that there is no prejudice to the client, and it does not disrupt the orderly process of justice. (See *Ramirez v. Sturdevant* (1994) 21 Cal.App.4th 904, 915.)

III. DISCUSSION

Plaintiff's counsel seeks to be relieved as counsel of record for the following reasons: "Counsel has been unable to maintain communication Plaintiff Margi Nomeland Willoch despite multiple attempts to obtain her cooperation regarding the substitution of counsel. After the departure of the attorney previously handling this matter, counsel made repeated efforts to contact Plaintiff and obtain her signature on the necessary Substitution of Attorney form, but those efforts have been unsuccessful.

Plaintiff's continued failure to respond has prevented counsel from effectively representing her interests and completing the transition of the matter to successor counsel. As a result, the attorney-client relationship has broken down to the point that continued representation is no longer reasonably feasible. Accordingly, withdrawal is warranted pursuant to Code of Civil Procedure section 284 and California Rules of Court, rule 3.1362."

(Form
MC-052.)

Absent a showing of resulting prejudice, an attorney's request for withdrawal should be granted. (People v. Prince (1968) 268 Cal.App.2d 398, 406.)

Upon review, the court finds the Motion does not comply with California Rules of Court, rule 3.1362. Counsel does not include Plaintiff's last known phone number on Form MC-053.

IV. CONCLUSION

Accordingly, the hearing for this Motion to Be Relieved as Counsel is CONTINUED to August 17, 2026 at 8:30 a.m.

Counsel to give notice.

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Dated: July 21, 2026

Brock T. Hammond

Judge of the Superior Court